

	25-1506621	Mr. Keefe has complied with the requirements set forth in <i>California Rules of Court, Rule 9.40</i>. Accordingly, the application is GRANTED. <i>Mr. Keefe is ordered to give notice of this ruling.</i>
3.	Kolaar v. FCA US LLC 25-1493558	The motion for terminating sanctions filed by defendants FCA US LLC and Huntington Beach Chrysler Dodge Jeep Ram (collectively, Defendants) against plaintiff Aaron Van Korlaar (Plaintiff) is DENIED WITHOUT PREJUDICE. The proof of service for this motion lists an incorrect email address for Plaintiff's counsel. The email address for Plaintiff's counsel listed in the proof of service contains a misspelling and omits the number 4 from the email address. (See ROA 10, 41.) There is no opposition filed. It is thus unclear if Plaintiff received proper notice of this motion. Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. <i>Counsel for Defendant shall give notice.</i>
4.	Jergensen v. NAHS Holding, Inc. 24-1411114	<i>(Sorry, still pending)</i>
5.	Li v. Li 25-1517999	<i>(Sorry, still pending)</i>
6.	Potter v. Gustafson 26-1554580	<i>(Continued)</i>
7.	Mkhitarian v. Mustafiz 25-1475287	Before the Court is a demurrer by defendant Tanim Mustafiz (Defendant) on the Second Amended Complaint (SAC) of plaintiff Albert Mkhitarian (Plaintiff). For the reasons set forth below, the demurrer is SUSTAINED as to the 1st cause of action without leave to amend. Defendant shall file his answer, if any, within 10 days. Plaintiff failed to cure the defect in the prior pleading. In the SAC, Plaintiff alleges Defendant was an equal shareholder of TestJet with Plaintiff, and adds that Defendant "was also an officer and director of TestJet, and, by reason of such, owed fiduciary duties to Plaintiff." (SAC ¶ 21.) These facts are still insufficient to establish the existence of a fiduciary relationship giving rise to breach of fiduciary duty. (<i>City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith</i> (1998) 68 Cal. App. 4th 445, 483 [elements].) Corporate officers and directors stand in a fiduciary relation to both the corporation and its stockholders. (<i>Bancroft-Whitney Co. v. Glen</i> (1966) 64 Cal.2d 327, 345.) There is a "strong public interest in assuring that corporate officers, directors, majority shareholders and others are faithful to their fiduciary obligations to minority shareholders." (<i>Meister v. Mensinger</i> (2014) 230 Cal.App.4th 381, 395 [emphasis added], citing <i>Steinberg v. Amplica, Inc.</i> (1986) 42 Cal.3d 1198, 1210; see e.g., <i>Persson v. Smart Inventions, Inc.</i> (2005) 125 Cal.App.4th 1141,

		1146-1147, 1156-1162 [no fiduciary duty arose from a <i>de facto</i> partnership or voluntary assumption of fiduciary obligations, despite the defendant's status as president, secretary and operational manner].) Here, however, Plaintiff does not allege status as a minority shareholder or other circumstances that may give rise to a fiduciary duty of a corporate officer or director. Nor does Plaintiff allege sufficient facts to establish a confidential relationship giving rise to a fiduciary duty. (<i>Richelle v. Roman Catholic Archbishop</i> (2003) 106 Cal.App.4th 257, 271 [elements].) Superior knowledge or unequal access to an allegedly concealed fact might support Plaintiff's separate fraud theories, but it does not establish the vulnerability required for a confidential relationship. There is no stronger or weaker party under the circumstances of this case. The SAC alleges equal ownership and repeatedly refers to the parties as business "partners," suggesting equal power. "Before a person can be charged with a fiduciary obligation, he must either knowingly undertake to act on behalf and for the benefit of another, or must enter into a relationship which imposes that undertaking as a matter of law." (<i>City of Hope National Medical Center v. Genentech, Inc.</i> (2008) 43 Cal.4th 375, 386.) There are no facts to suggest that Defendant took Plaintiff's capital contributions with the view to acting primarily for the benefit of Plaintiff. The demurrer is therefore SUSTAINED without leave to amend. <i>Counsel for Defendant shall give notice of this ruling.</i>
8.	Waypoint Aviation Services v. Transcontinental Air LLC 25-1495879	Before the Court is a demurrer and motion to strike filed by defendant Transcontinental Air, LLC to the first amended complaint (FAC) of plaintiff Waypoint Aviation Services. For the reasons set forth below, the demurrer is OVERRULED in its entirety and the motion to strike is GRANTED with 10 days' leave to amend. Demurrer <u>1st cause of action</u> (breach of contract): The FAC states sufficient facts to state a cause of action. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements]; FAC ¶¶ 5-8, Exs. A, B.) The Court finds the statute of frauds does not apply. The statute of frauds provides that "[a]n agreement that by its terms is not to be performed within a year from the making thereof" is invalid unless it is memorialized in writing and "subscribed by the party to be charged." (<i>Civ. Code, § 1624(a)(1)</i>.) The terms of the contract itself must reveal that it cannot be performed within one year. (<i>White Lighting Co. v. Wolfson</i> (1968) 68 Cal.2d 336, 343; <i>Rest. 2d Contracts</i> §§ 110(1)(e), 130.) Here, there are no terms in the alleged contract or exhibits attached to the FAC that services and/or payment must be completed in one year. The fact that the services were actually performed over a period of more year is irrelevant. (<i>Rest.2d, Contracts</i> § 130, Comment a ["the enforceability of a contract under the one-year provision does not turn on the actual course of subsequent events, nor on the expectations of the parties as to the probabilities"].)